

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rose Lantigua (S14)	Team: Squad #14	CCRB Case #: 201607047	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/16/2016 9:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/16/2018	Precinct: 105		
Date/Time CV Reported Tue, 08/16/2016 7:17 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/16/2016 7:17 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jared Pilkington	24547	951059	WARRSEC
2. DT3 Alexandros Kalogiros	04913	936837	WARRSEC
3. DT3 Christophe Mcgee	2293	931819	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Sullivan	24080	951310	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . POM Jared Pilkington	Abuse: Police Officer Jared Pilkington entered and searched § 87(2)(b) in Queens.	A . Unsubstantiated
B . DT3 Christophe Mcgee	Abuse: Detective Christopher Mcgee entered and searched § 87(2)(b) in Queens.	B . Unsubstantiated
C . DT3 Alexandros Kalogiros	Abuse: Detective Alexandros Kalogiros entered and searched § 87(2)(b) in Queens.	C . Unsubstantiated
D . POM Jared Pilkington	Abuse: Police Officer Jared Pilkington damaged § 87(2)(b)'s property.	D . Substantiated
E . POM Jared Pilkington	Abuse: Police Officer Jared Pilkington entered and searched the basement of § 87(2)(b) in, Queens.	E . Substantiated
F . DT3 Christophe Mcgee	Abuse: Detective Christopher Mcgee entered and searched the basement of § 87(2)(b) in Queens.	F . Substantiated
G . DT3 Alexandros Kalogiros	Abuse: Detective Alexandros Kalogiros entered and searched the basement of § 87(2)(b) in Queens.	G . Substantiated
H . POM Jared Pilkington	Discourtesy: Police Officer Jared Pilkington spoke discourteously to § 87(2)(b)	H . Unsubstantiated

Case Summary

On August 16, 2016, § 87(2)(b) filed the following complaint by phone with the CCRB on behalf of his brother, § 87(2)(b). § 87(2)(b) did not witness the incident.

On August 16, 2016, at approximately 9:15 a.m., § 87(2)(b) was alone in his home at § 87(2)(b) in Queens. Police Officer Jared Pilkington, Detective Christopher McGee, Detective Alexandros Kalogiros, and Police Officer John Sullivan from Warrant Section Queens arrived at the location with an arrest warrant for § 87(2)(b) son, who has the same name as § 87(2)(b). § 87(2)(b) answered the door for the officers and spoke to the investigating officer, PO Pilkington, who asked him whether his son was at the location. PO Pilkington, Det. McGee, and Det. Kalogiros allegedly walked into § 87(2)(b) home without establishing consent (**Allegation A, B, and C**). § 87(2)(b) guided the officers through separate rooms of the house where they looked under the beds and inside the closets of each room.

PO Pilkington, Det. McGee, and Det. Kalogiros approached a locked door that leads to the basement of the home. § 87(2)(b) told the officers that he did not have a key for the door. PO Pilkington kicked down the door to the basement (**Allegation D**), and PO Pilkington, Det. McGee, and Det. Kalogiros entered and searched the basement (**Allegations E, F, and G**). PO Pilkington allegedly called § 87(2)(b) a “fucking liar” (**Allegation H**). PO Pilkington left a business card with his telephone number at the conclusion of the search.

On the same day, § 87(2)(b) called PO Pilkington in regards to the search of his home and the damage caused to the basement door.

This case is being submitted approximately one week past the 90-day benchmark § 87(2)(g)

Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) but he rejected mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint. § 87(2)(b) has not filed any previous CCRB complaints. (BR01) (BR02)
- PO Pilkington has been a member of the NYPD for five years. He does not have any previous CCRB allegations. (See officer history)
- Det. McGee has been a member of the NYPD for 14 years and has 12 other CCRB allegations. Two previous allegations of entry and search were closed as unsubstantiated and exonerated. None of the other allegations against Det. McGee have been substantiated § 87(2)(g). (See officer history)
- Det. Kalogiros has been a member of the NYPD for 11 years and has six other CCRB allegations and one additional open CCRB case, 201607354, with an allegation of entry and search. None of the other allegations against Det. Kalogiros have been substantiated

- § 87(2)(g) (See officer history)
- PO Sullivan has been a member of the NYPD for five years. He does not have any previous CCRB allegations. (See officer history)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A - Abuse of Authority: Police Officer Jared Pilkington entered and searched § 87(2)(b), in Queens.

Allegation B - Abuse of Authority: Detective Christopher McGee entered and searched § 87(2)(b), in Queens.

Allegation C - Abuse of Authority: Detective Alexandros Kalogiros entered and searched § 87(2)(b), in Queens.

§ 87(2)(b) recounted that he was only wearing underwear and socks when he answered the door for the officers. He stated that PO Pilkington asked him about his son. § 87(2)(b) identified himself and told PO Pilkington that the subject of their warrant is his son. PO Pilkington asked § 87(2)(b) whether his son was at the location. § 87(2)(b) informed PO Pilkington that his son left the location three years ago. § 87(2)(b) recounted that he began to take a few steps back because he wanted to put clothes on. He stated that PO Pilkington allegedly walked inside and told him that the officers needed to go inside and could not leave the location until they had gone inside. Det. McGee and Det. Kalogiros allegedly entered the house behind PO Pilkington. § 87(2)(b) stated that he did not give the officers consent to enter the house.

PO Pilkington stated that he arrived at the § 87(2)(b) in Queens with a warrant to arrest § 87(2)(b) son, also named § 87(2)(b). The address on the warrant was § 87(2)(b) in Queens (BR03). He explained that he used a search engine that corroborated the address and also recognized the address listed on several arrest prior reports. PO Pilkington explained that the most recent arrest report listed the address on the warrant as the subject's address. He also explained that he wanted to visit § 87(2)(b) in Queens because he learned that the subject had family at the location. PO Pilkington knocked on the side door of the house for five minutes before § 87(2)(b) answered the door. § 87(2)(b) identified himself as the father of the subject on the warrant. PO Pilkington asked § 87(2)(b) whether his son was home. § 87(2)(b) told PO Pilkington that his son was not residing at that location but that he stays there once in a while. § 87(2)(b) did not have any contact information or knowledge about his son's whereabouts. PO Pilkington also said that he showed § 87(2)(b) a copy of the warrant. He recounted that § 87(2)(b) gave the officers consent to enter the home and check whether his son was at the location. PO Pilkington entered with Det. McGee and Det. Kalogiros.

§ 87(2)(b) accompanied the officers as they looked through the rooms throughout the house. PO Pilkington stated that § 87(2)(b) did not protest the officer's presence at the house.

Det. McGee recounted that PO Pilkington spoke to § 87(2)(b) at the door. He described that § 87(2)(b) appeared as if he had just woken up because he did not have a shirt on. Det. McGee recounted that PO Pilkington showed § 87(2)(b) a copy of the warrant and he identified himself as a relative of the subject. § 87(2)(b) told the officers that the subject of the warrant comes and goes from the location. He also told the officers that he was not sure whether the subject was at the location. Det. McGee recounted that an officer asked § 87(2)(b) whether they could look around the house although he could not recall which officer asked § 87(2)(b) this. Det. McGee said that § 87(2)(b) provided consent for the officers to enter the home. He described that § 87(2)(b) stepped away and stated that he understood § 87(2)(b) body language as consent. Det. McGee corroborated PO Pilkington's statement that § 87(2)(b) guided the officers throughout the house. He described § 87(2)(b) as quiet but cooperative.

Det. Kalogiros recounted that he identified himself as a police officer and told § 87(2)(b) that he had a warrant. He also said that he got PO Pilkington's attention so he could speak with § 87(2)(b) since he was the investigating officer. Det. Kalogiros added that PO Pilkington spoke to § 87(2)(b) and showed him a copy of the warrant. He recounted that § 87(2)(b) looked at the warrant and acknowledged that he knew the subject. Det. Kalogiros recounted that § 87(2)(b) said that the subject of the warrant stays at the location from time to time. Det. Kalogiros did not recall whether § 87(2)(b) told them the last time the subject had stayed at the location. He stated that they asked § 87(2)(b) whether they could enter the home because they had a warrant and § 87(2)(b) gave them verbal consent.

An officer cannot legally search for the subject of an arrest warrant in the home of a third party without exigent circumstances or consent. Steagald v. United States, 451 U.S. 204 (1981) (BR04)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegations A, B, and C** be closed as **unsubstantiated**.

Allegation D - Abuse of Authority: Police Officer Jared Pilkington damaged § 87(2)(b)'s property.

Allegation E - Abuse of Authority: Police Officer Jared Pilkington entered and searched the basement of § 87(2)(b) in Queens.

Allegation F - Abuse of Authority: Detective Christopher McGee entered and searched the basement of § 87(2)(b) in Queens.

Allegation G - Abuse of Authority: Detective Alexandros Kalogiros entered and searched the basement of § 87(2)(b), in Queens.

§ 87(2)(b) recounted that the officers looked under the beds and inside the closets of each room in the house. The officers approached a locked door at the bottom of a staircase that leads to the basement. PO Pilkington asked § 87(2)(b) whether he had a key to the basement door. § 87(2)(b) explained that his sister lives in the basement but the basement was locked because she had just left to work. § 87(2)(b) also told the officers that he did not have a key. PO Pilkington kicked down the door to the basement during which time § 87(2)(b) asked him whether he had a warrant. PO Pilkington continued to kick the door and busted the door open but there was a chain on the other side of the door. PO Pilkington asked § 87(2)(b) why there was a chain on the other side of the door and mentioned that someone would need to be on the other side of the door to put a chain on the door. § 87(2)(b) told PO Pilkington to look closely at the door and see that there was a key that would allow him to open the chain on the door and lock the door from the outside. PO Pilkington kicked the door open and entered the basement with Det. McGee, and Det. Kalogiros entered and searched the basement. § 87(2)(b) did not enter the basement with the officers.

During his interview, § 87(2)(b) said that he spoke with PO Pilkington on the phone in regards to the damage that was caused to the front door and the basement door. § 87(2)(b) also provided photos of a cracked doorframe to the CCRB. (BR05) (BR06) (BR07) (BR08)

PO Pilkington recounted that he approached a door at the bottom of a flight of stairs and attempted to open it but it was locked from the inside. He explained that the door only opened an inch or two because it was chained from the inside. PO Pilkington asked § 87(2)(b) whether anyone else was home and whether he had a key. § 87(2)(b) told PO Pilkington that the basement was his sister's apartment but she was not home at the time. PO Pilkington asked § 87(2)(b) how the door had been locked from the inside. § 87(2)(b) responded that he did not know. PO Pilkington initially stated that he asked § 87(2)(b) whether anyone was inside of the apartment and § 87(2)(b) responded, "Could be." He later stated that he asked § 87(2)(b) whether his son was inside of the room and § 87(2)(b) responded, "Could be." PO Pilkington recounted that he returned to the basement door and opened it again. PO Pilkington said that he heard movement and explained that the movement sounded like a thud. PO Pilkington announced himself by saying, "Police! § 87(2)(b) if you're in the room come to the door and unlock it. Open it up." PO Pilkington said he continued to hear movement but said that no one came to the door. He recounted that he asked § 87(2)(b) if he had access to the door and § 87(2)(b) responded that he did not. PO Pilkington recounted that he told § 87(2)(b) that he had to take down the door. He said that § 87(2)(b) stepped back and said, "Well you have a warrant." PO Pilkington explained that he believed that he had § 87(2)(b) consent to open the door because of § 87(2)(b) body language and statement about the warrant. PO Pilkington kicked the door off of the hinges and entered the room with Det. McGee and Det. Kalogiros. PO Pilkington recounted that he saw the chains broken and the door falling off of the hinges. PO Pilkington said that they did not find the subject within the room and speculated that the movement he heard came from several cats inside of the room. He described the room as dark and dusty and stated that the room did not have any windows. PO Pilkington returned upstairs with Det. McGee and Det. Kalogiros and provided his name and phone number to § 87(2)(b). He said that § 87(2)(b) did not ask any further questions or complain about damage to the door. PO Pilkington said that he did not notice that the doorframe was cracked. PO Pilkington also recounted that § 87(2)(b) was cooperative throughout the incident.

Det. McGee recounted that he and the other officers encountered a door at the basement that was locked by three chains on the opposite side. Det. McGee stated that he did not see whether there was a locking mechanism for the chain outside of the door. He did not recall whether any of the officers asked § 87(2)(b) if there was a key to the door. Det. McGee recounted that they asked § 87(2)(b) whether the subject could be in the room that was locked and § 87(2)(b) responded that he was not sure. Det. McGee also recounted that he heard movement before the officers knocked on the door. He described the movement as furniture being moved along the floor. Det. McGee also said that he and PO Pilkington and Det. Kalogiros identified themselves by saying, "Police!" He also said that the officers mentioned that they were in the warrant squad and called out the subject's name. Det. McGee recounted that he turned to § 87(2)(b) and asked him again whether the subject could be inside of the room that was locked and § 87(2)(b) responded that it was possible. Det. McGee did not recall whether there was a conversation with § 87(2)(b) about breaking the door down. He also did not recall whether they asked § 87(2)(b) if they could break the door down. Det. McGee said that he did not see how the door was taken down because he stood behind PO Pilkington and Det. Kalogiros on the stairway. Det. McGee said that he did not see any damage to the door but said that the chains that kept the door locked were most likely damaged. Det. McGee recounted that he looked at § 87(2)(b) before entering the room and said that § 87(2)(b) became very quiet and walked away. Det. McGee said that the room had very poor lighting and was in poor condition. He recounted that there was a lot of dust, dirt, and stated that there were cats inside of the room.

Det. Kalogiros corroborated PO Pilkington and Det. McGee's statements that they searched throughout the house before they encountered a basement door that was chained on the inside. Det. Kalogiros did not recall whether § 87(2)(b) explained how to gain access to the door. He said that § 87(2)(b) did not try to explain how to open the door from the outside. Det. Kalogiros also said that he heard movement behind the door. He described the movement as rustling, small thuds, and something moving around. Det. Kalogiros did not recall the details of the conversation between § 87(2)(b) and the officers regarding the door. He did not recall whether § 87(2)(b) gave the officers permission to take down the door. Det. Kalogiros said that PO Pilkington took the door down with the force of his body. He recounted that § 87(2)(b) did not raise his voice or argue with the officers. He also recounted that § 87(2)(b) remained cooperative after the officers had searched the basement. Det. Kalogiros said that the chains on the door were broken off but described that the door was still on its hinges. Det. Kalogiros described the basement as dark, dusty, and cluttered. He stated that there were parts of the basement that remained unsearched because certain areas were hard to reach.

An officer cannot legally search for the subject of an arrest warrant in the home of a third party without exigent circumstances or consent. Steagald v. United States, 451 U.S. 204 (1981) (BR04)

In determining whether exigent circumstances are present, courts have applied a number of different factors, including the following: 1) the gravity or violent nature of the offense with which the suspect is to be charged; 2) whether the suspect is reasonably believed to be armed; 3) a clear showing of probable cause to believe that the suspect committed the crime; 4) strong reason to believe that the suspect is in the premises being entered; 5) a likelihood that the suspect will escape if not swiftly apprehended; and 6) the peaceful circumstances of the entry. People v. McBride, 14 N.Y.3d 440 (2010) (BR09)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E, F, and G** be closed as substantiated.

Allegation H - Discourtesy: Police Officer Jared Pilkington spoke discourteously to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) said that PO Pilkington asked him why and how the basement door had been chained from the inside. He also recounted that PO Pilkington told him that someone would need to be inside of the basement to chain the door. § 87(2)(b) told PO Pilkington that if he looked closely he could see that a key existed that allowed door to be opened and chained from the outside. PO Pilkington allegedly called § 87(2)(b) a “fucking liar” and kicked the door open.

PO Pilkington denied that he or the other officers called § 87(2)(b) a “fucking liar.” Det. McGee and Det. Kalogiros corroborated PO Pilkington’s statement and said that none of the officers used profanity throughout the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation H** be closed as unsubstantiated.

Squad: **14**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date